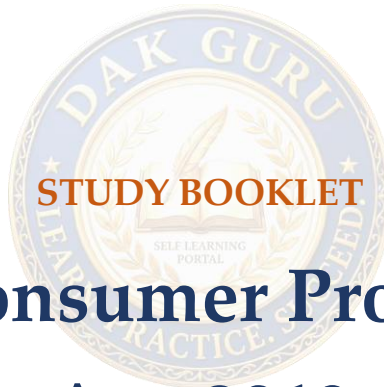




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STUDY BOOKLET

The Consumer Protection Act, 2019

(Act No. 35 of 2019)

Updated with the Consumer Protection (Jurisdiction) Rules, 2021,

BNS / BNSS, 2023 statutory replacements & Dark Patterns Guidelines, 2023

FOR LDCE INSPECTOR POSTS & PS GROUP 'B' DEPARTMENTAL EXAMINATIONS

DISCLAIMER

*This booklet has been prepared strictly from an examination point of view for aspirants of the LDCE IP and PS Group 'B' departmental examinations. **Every effort has been made to ensure forensic-grade accuracy**, including the incorporation of statutory amendments and subordinate legislation up to **1 June 2026**, but readers are nevertheless advised to cross-verify all provisions against the official Gazette of India and the bare Act published by the Ministry of Consumer Affairs, Food and Public Distribution before relying on the contents for any official purpose.*

Key amendments and developments captured in this edition

- **Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021** — notified on 30 December 2021 — revising the pecuniary jurisdiction of all three Commissions.
- **Consumer Protection (Consumer Disputes Redressal Commissions) Amendment Rules, 2022** — notified on 20 December 2022.
- **Guidelines for Prevention and Regulation of Dark Patterns, 2023** — notified by the Central Consumer Protection Authority (CCPA) on 30 November 2023.
- **Statutory replacement of IPC, CrPC and Indian Evidence Act** — w.e.f. 1 July 2024 by the Bharatiya Nyaya Sanhita, 2023 (BNS), the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) and the Bharatiya Sakshya Adhiniyam, 2023 (BSA). Section-equivalence notes are inserted at each affected provision of the CP Act, 2019.
- **Jammu and Kashmir Reorganisation Act, 2019** — w.e.f. 31 October 2019, the CP Act, 2019 stands extended to the Union Territories of Jammu and Kashmir and Ladakh, notwithstanding the original drafting in Section 1(2).

THE CONSUMER PROTECTION ACT, 2019

(Act No. 35 of 2019)

[9th August, 2019]

An Act to provide for protection of the interests of consumers and for the said purpose, to establish authorities for timely and effective administration and settlement of consumers' disputes and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventieth Year of the Republic of India as follows: —

CHAPTER I PRELIMINARY

Section 1. Short title, extent, commencement and application

- (1) This Act may be called the Consumer Protection Act, 2019.
- (2) It extends to the whole of India except the State of Jammu and Kashmir.
- (3) It shall come into force on such date as the Central Government may, by notification, appoint and different dates may be appointed for different States and for different provisions of this Act and any reference in any such provision to the commencement of this Act shall be construed as a reference to the coming into force of that provision.
- (4) Save as otherwise expressly provided by the Central Government, by notification, this Act shall apply to all goods and services.

STATUTORY UPDATE — Effect of J&K Reorganisation Act, 2019:

Although Section 1(2) as enacted excludes the State of Jammu and Kashmir, this exclusion has been **rendered otiose** by the Jammu and Kashmir Reorganisation Act, 2019 (Act 34 of 2019) which came into force on 31 October 2019. Under Section 95 read with the Fifth Schedule of the Reorganisation Act, all Central Acts in force on the appointed day extend to the Union Territory of Jammu and Kashmir and the Union Territory of Ladakh. The CP Act, 2019 therefore applies to the **whole of India including J&K and Ladakh**.

 COMMENCEMENT (Notification No. S.O. 2421(E), dated 23 July 2020):

The Act came into force on 24 July 2020 for Section 2 [clauses (4), (13), (14), (16) and (40)], Sections 10 to 27 (both inclusive), sub-clause (iv) of clause (a) of sub-section (1) of Section 58, Sections 88, 89, 92, 93, 94, 96, 97, 99, clauses (f) to (m) of sub-section (2) and clauses (zg), (zh) and (zi) of sub-section (2) of Section 101, and Section 104 [vide Gazette of India, Extraordinary, Part II, Section 3(ii)]. The remaining provisions came into force on 20 July 2020 vide Notification No. S.O. 2351(E), dated 15 July 2020.

Section 2. Definitions

In this Act, unless the context otherwise requires,—

(1) **"advertisement"** means any audio or visual publicity, representation, endorsement or pronouncement made by means of light, sound, smoke, gas, print, electronic media, internet or website and includes any notice, circular, label, wrapper, invoice or such other documents;

(2) **"appropriate laboratory"** means a laboratory or an organisation— (i) recognised by the Central Government; or (ii) recognised by a State Government, subject to such guidelines as may be issued by the Central Government in this behalf; or (iii) established by or under any law for the time being in force, which is maintained, financed or aided by the Central Government or a State Government for carrying out analysis or test of any goods with a view to determining whether such goods suffer from any defect;

(3) **"branch office"** means— (i) any office or place of work described as a branch by the establishment; or (ii) any establishment carrying on either the same or substantially the same activity carried on by the head office of the establishment;

(4) **"Central Authority"** means the Central Consumer Protection Authority established under Section 10;

(5) **"complainant"** means— (i) a consumer; or (ii) any voluntary consumer association registered under any law for the time being in force; or (iii) the Central Government or any State Government; or (iv) the Central Authority; or (v) one or more consumers, where there are numerous consumers having the same interest; or (vi) in case of death of a consumer, his legal heir or legal representative; or (vii) in case of a consumer being a minor, his parent or legal guardian;

(6) "**complaint**" means any allegation in writing, made by a complainant for obtaining any relief provided by or under this Act, that— (i) an unfair contract or unfair trade practice or a restrictive trade practice has been adopted by any trader or service provider; (ii) the goods bought by him or agreed to be bought by him suffer from one or more defects; (iii) the services hired or availed of or agreed to be hired or availed of by him suffer from any deficiency; (iv) a trader or a service provider has charged for the goods or services a price in excess of the price fixed under any law, or displayed on the goods/package/price list, or agreed between the parties; (v) goods hazardous to life and safety are being offered for sale in contravention of safety standards or where the trader knows them to be unsafe; (vi) services hazardous or likely to be hazardous to life and safety are being offered by a person who knows them to be injurious; (vii) a claim for product liability action lies against the product manufacturer, product seller or product service provider;

(7) "**consumer**" means any person who— (i) buys any goods for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment, and includes any user of such goods other than the person who buys such goods for consideration, when such use is made with the approval of such person, but does not include a person who obtains such goods for resale or for any commercial purpose; or (ii) hires or avails of any service for a consideration ... and includes any beneficiary of such service ... but does not include a person who avails of such service for any commercial purpose. Explanation: (a) "commercial purpose" does not include use by a person of goods bought and used by him exclusively for the purpose of earning his livelihood by means of self-employment; (b) "buys any goods" and "hires or avails any services" includes offline or online transactions through electronic means or by teleshopping or direct selling or multi-level marketing;

(8) "**consumer dispute**" means a dispute where the person against whom a complaint has been made, denies or disputes the allegations contained in the complaint;

(9) "**consumer rights**" includes— (i) the right to be protected against the marketing of goods, products or services which are hazardous to life and property; (ii) the right to be informed about the quality, quantity, potency, purity, standard and price of goods, products or services so as to protect the consumer against unfair trade practices; (iii) the right to be assured, wherever possible, access to a variety of goods, products or services at competitive prices; (iv) the right to be heard and to be assured that consumer's interests will receive due consideration at appropriate fora; (v) the right to seek redressal against

unfair trade practice or restrictive trade practices or unscrupulous exploitation of consumers; and (vi) the right to consumer awareness;

(10) "defect" means any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under any law for the time being in force or under any contract, express or implied, or as is claimed by the trader in any manner whatsoever in relation to any goods or product, and the expression "defective" shall be construed accordingly;

(11) "deficiency" means any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance which is required to be maintained by or under any law for the time being in force or has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service, and includes— (i) any act of negligence or omission or commission by such person which causes loss or injury to the consumer; and (ii) deliberate withholding of relevant information by such person to the consumer;

(12) "design" in relation to a product, means the intended or known physical and material characteristics of such product and includes any intended or known formulation or content of such product and the usual result of the intended manufacturing or other process used to produce such product;

(13) "direct selling" means marketing, distribution and sale of goods or provision of services through a network of sellers, other than through a permanent retail location;

(14) "Director-General" means the Director-General appointed under sub-section (2) of Section 15;

(15) "District Commission" means a District Consumer Disputes Redressal Commission established under sub-section (1) of Section 28;

(16) "e-commerce" means buying or selling of goods or services including digital products over digital or electronic network;

(17) "electronic service provider" means a person who provides technologies or processes to enable a product seller to engage in advertising or selling goods or services to a consumer, and includes any online market place or online auction sites;

(18) "endorsement" in relation to an advertisement, means— (i) any message, verbal statement, demonstration; or (ii) depiction of the name, signature, likeness or other identifiable personal characteristics of an individual; or (iii) depiction of the name or seal

of any institution or organisation, which makes the consumer believe that it reflects the opinion, finding or experience of the person making such endorsement;

(19) "**establishment**" includes an advertising agency, commission agent, manufacturing, trading or any other commercial agency which carries on any business, trade or profession or any work in connection with or incidental or ancillary to any commercial activity, trade or profession, or such other class or classes of persons including public utility entities in the manner as may be prescribed;

(20) "**express warranty**" means any material statement, affirmation of fact, promise or description relating to a product or service warranting that it conforms to such material statement, affirmation, promise or description, and includes any sample or model of a product warranting that the whole of such product conforms to such sample or model;

(21) "**goods**" means every kind of movable property and includes "food" as defined in clause (j) of sub-section (1) of Section 3 of the Food Safety and Standards Act, 2006 (34 of 2006);

(22) "**harm**" in relation to a product liability, includes— (i) damage to any property, other than the product itself; (ii) personal injury, illness or death; (iii) mental agony or emotional distress attendant to personal injury or illness or damage to property; or (iv) any loss of consortium or services or other loss resulting from a harm referred to in sub-clauses (i), (ii) or (iii), but shall not include any harm caused to a product itself or any damage to the property on account of breach of warranty conditions or any commercial or economic loss, including any direct, incidental or consequential loss relating thereto;

(23) "**injury**" means any harm whatever illegally caused to any person, in body, mind or property;

(24) "**manufacturer**" means a person who— (i) makes any goods or parts thereof; or (ii) assembles any goods or parts thereof made by others; or (iii) puts or causes to be put his own mark on any goods made by any other person;

(25) "**mediation**" means the process by which a mediator mediates the consumer disputes;

(26) "**mediator**" means a mediator referred to in Section 75;

(27) "**member**" includes the President and a member of the National Commission or a State Commission or a District Commission, as the case may be;

(28) **"misleading advertisement"** in relation to any product or service, means an advertisement which— (i) falsely describes such product or service; or (ii) gives a false guarantee to, or is likely to mislead the consumers as to the nature, substance, quantity or quality of such product or service; or (iii) conveys an express or implied representation which, if made by the manufacturer or seller or service provider thereof, would constitute an unfair trade practice; or (iv) deliberately conceals important information;

(29) **"National Commission"** means the National Consumer Disputes Redressal Commission established under sub-section (1) of Section 53;

(30) **"notification"** means a notification published in the Official Gazette and the term "notify" shall be construed accordingly;

(31) **"person"** includes— (i) an individual; (ii) a firm whether registered or not; (iii) a Hindu undivided family; (iv) a co-operative society; (v) an association of persons whether registered under the Societies Registration Act, 1860 (21 of 1860) or not; (vi) any corporation, company or a body of individuals whether incorporated or not; (vii) any artificial juridical person, not falling within any of the preceding sub-clauses;

(32) **"prescribed"** means prescribed by rules made by the Central Government, or as the case may be, the State Government;

(33) **"product"** means any article or goods or substance or raw material or any extended cycle of such product, which may be in gaseous, liquid or solid state, possessing intrinsic value, which is capable of delivery either as wholly assembled or as a component part, and is produced for introduction to trade or commerce, but does not include human tissues, blood, blood products and organs;

(34) **"product liability"** means the responsibility of a product manufacturer or product seller, of any product or service, to compensate for any harm caused to a consumer by such defective product manufactured or sold or by deficiency in services relating thereto;

(35) **"product liability action"** means a complaint filed by a person before a District Commission or State Commission or National Commission, as the case may be, for claiming compensation for the harm caused to him;

(36) **"product manufacturer"** means a person who— (i) makes any product or parts thereof; or (ii) assembles parts thereof made by others; or (iii) puts or causes to be put his own mark on any products made by any other person; or (iv) makes a product and sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains such

product or is otherwise involved in placing such product for commercial purpose; or (v) designs, produces, fabricates, constructs or re-manufactures any product before its sale; or (vi) being a product seller of a product, is also a manufacturer of such product;

(37) "**product seller**" in relation to a product, means a person who, in the course of business, imports, sells, distributes, leases, installs, prepares, packages, labels, markets, repairs, maintains, or otherwise is involved in placing such product for commercial purpose; includes a manufacturer who is also a product seller, and a service provider; but does not include a seller of immovable property (unless engaged in sale/construction of homes or flats), a professional services provider where sale/use of product is only incidental, or a person acting only in a financial capacity / a lessor under specified conditions;

(38) "**product service provider**" in relation to a product, means a person who provides any service in respect of such product;

(39) "**regulations**" means the regulations made by the National Commission, or as the case may be, the Central Authority;

(40) "**Regulator**" means a body or any authority established under any other law for the time being in force;

(41) "**restrictive trade practice**" means a trade practice which tends to bring about manipulation of price or its conditions of delivery or to affect flow of supplies in the market relating to goods or services in such a manner as to impose on the consumers unjustified costs or restrictions, and shall include— (i) delay beyond the period agreed to by a trader in supply of such goods or in providing the services which has led or is likely to lead to rise in the price; (ii) any trade practice which requires a consumer to buy, hire or avail of any goods or services as a condition precedent for buying, hiring or availing of other goods or services;

(42) "**service**" means service of any description which is made available to potential users and includes, but not limited to, the provision of facilities in connection with banking, financing, insurance, transport, processing, supply of electrical or other energy, telecom, boarding or lodging or both, housing construction, entertainment, amusement or the purveying of news or other information, but does not include the rendering of any service free of charge or under a contract of personal service;

(43) "**spurious goods**" means such goods which are falsely claimed to be genuine;

(44) **"State Commission"** means a State Consumer Disputes Redressal Commission established under sub-section (1) of Section 42;

(45) **"trader"** in relation to any goods, means a person who sells or distributes any goods for sale, and includes the manufacturer thereof, and where such goods are sold or distributed in package form, includes the packer thereof;

(46) **"unfair contract"** means a contract between a manufacturer or trader or service provider on one hand, and a consumer on the other, having such terms which cause significant change in the rights of such consumer, including— (i) requiring manifestly excessive security deposits; (ii) imposing any penalty wholly disproportionate to the loss; (iii) refusing to accept early repayment of debts on payment of applicable penalty; (iv) entitling a party to terminate such contract unilaterally, without reasonable cause; (v) permitting one party to assign the contract to the detriment of the other party who is a consumer, without his consent; or (vi) imposing on the consumer any unreasonable charge, obligation or condition which puts such consumer to disadvantage;

(47) **"unfair trade practice"** means a trade practice which, for the purpose of promoting the sale, use or supply of any goods or for the provision of any service, adopts any unfair method or unfair or deceptive practice, including— (i) making any false statement (orally, in writing or by visible representation including electronic record) about standard/quality/grade/sponsorship/warranty/price of goods or services or disparaging another person's goods/services; (ii) permitting publication of bargain-price advertisements not intended to be honoured; (iii) offering gifts/prizes with intention not to provide them, or conducting unauthorised contests/lotteries/games of chance, or withholding scheme results; (iv) permitting sale or supply of goods not complying with prescribed standards; (v) permitting hoarding/destruction or refusal to sell to raise prices; (vi) manufacturing of spurious goods or adopting deceptive practices in services; (vii) not issuing bill/cash memo/receipt in the prescribed manner; (viii) refusing to take back defective goods or refund consideration within the stipulated period or, in absence of stipulation, within thirty days; (ix) disclosing personal information given in confidence by the consumer except as permitted by law.

✓ **EXAM POINTER — The 6 Consumer Rights**

The six consumer rights (Safety, Information, Choice, Hearing, Redressal, Education) are statutorily housed in Section 2(9) of the CP Act, 2019 — and NOT in Section 5.

Section 5 only states that the objects of the Central Council are to render advice on the promotion and protection of these rights. (Mnemonic: S-I-C-H-R-E.)

CHAPTER II

CONSUMER PROTECTION COUNCILS

Section 3. Central Consumer Protection Council

(1) The Central Government shall, by notification, establish with effect from such date as it may specify in that notification, the Central Consumer Protection Council to be known as the Central Council.

(2) The Central Council shall be an advisory council and consist of the following members, namely:—

- (a) the Minister-in-charge of the Department of Consumer Affairs in the Central Government, who shall be the Chairperson; and
- (b) such number of other official or non-official members representing such interests as may be prescribed.

Section 4. Procedure for meetings of Central Council

(1) The Central Council shall meet as and when necessary, but at least one meeting of the Council shall be held every year.

(2) The Central Council shall meet at such time and place as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business as may be prescribed.

Section 5. Objects of Central Council

The objects of the Central Council shall be to render advice on promotion and protection of the consumers' rights under this Act.

Section 6. State Consumer Protection Councils

(1) Every State Government shall, by notification, establish with effect from such date as it may specify in such notification, a State Consumer Protection Council for such State to be known as the State Council.

(2) The State Council shall be an advisory council and consist of the following members, namely:—

- (a) the Minister-in-charge of Consumer Affairs in the State Government who shall be the Chairperson;
- (b) such number of other official or non-official members representing such interests as may be prescribed;
- (c) such number of other official or non-official members, not exceeding ten, as may be nominated by the Central Government.

(3) The State Council shall meet as and when necessary but not less than two meetings shall be held every year.

(4) The State Council shall meet at such time and place as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business, as may be prescribed.

Section 7. Objects of State Council

The objects of every State Council shall be to render advice on promotion and protection of consumer rights under this Act within the State.

Section 8. District Consumer Protection Council

(1) The State Government shall, by notification, establish for every District with effect from such date as it may specify in such notification, a District Consumer Protection Council to be known as the District Council.

(2) The District Council shall be an advisory council and consist of the following members, namely:—

- (a) the Collector of the district (by whatever name called), who shall be the Chairperson; and
- (b) such number of other official and non-official members representing such interests as may be prescribed.

(3) The District Council shall meet as and when necessary but not less than two meetings shall be held every year.

(4) The District Council shall meet at such time and place within the district as the Chairperson may think fit and shall observe such procedure in regard to the transaction of its business as may be prescribed.

Section 9. Objects of District Council

The objects of every District Council shall be to render advice on promotion and protection of consumer rights under this Act within the district.

Summary Table: Consumer Protection Councils

Council	Established By	Chairperson	Nature	Minimum Meetings
Central Council (S.3)	Central Government by notification	Minister-in-charge of Department of Consumer Affairs (Central)	Advisory	At least 1 meeting per year
State Council (S.6)	State Government by notification	Minister-in-charge of Consumer Affairs (State)	Advisory	Not less than 2 meetings per year
District Council (S.8)	State Government by notification (one per district)	District Collector (by whatever name called)	Advisory	Not less than 2 meetings per year

HIGH-YIELD POINT (often missed)

All three Consumer Protection Councils under the 2019 Act are expressly designated as **ADVISORY** councils — their function is to **RENDER ADVICE** on promotion and protection of consumer rights. They are **NOT** adjudicatory bodies. Adjudication lies with the District / State / National Commissions (Chapter IV) and regulatory powers with the CCPA (Chapter III).

CHAPTER III

CENTRAL CONSUMER PROTECTION AUTHORITY

Section 10. Establishment of Central Consumer Protection Authority

(1) The Central Government shall, by notification, establish with effect from such date as it may specify in that notification, a Central Consumer Protection Authority to be known as the Central Authority to regulate matters relating to violation of rights of consumers, unfair trade practices and false or misleading advertisements which are prejudicial to the interests of public and consumers and to promote, protect and enforce the rights of consumers as a class.

(2) The Central Authority shall consist of a Chief Commissioner and such number of other Commissioners as may be prescribed, to be appointed by the Central Government to exercise the powers and discharge the functions under this Act.

(3) The headquarters of the Central Authority shall be at such place in the National Capital Region of Delhi, and it shall have regional and other offices in any other place in India as the Central Government may decide.

Section 11. Qualifications, method of recruitment, etc., of Chief Commissioner and Commissioners

The Central Government may, by notification, make rules to provide for the qualifications for appointment, method of recruitment, procedure for appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of the service of the Chief Commissioner and Commissioners of the Central Authority.

Section 12. Vacancy, etc., not to invalidate proceedings of Central Authority

No act or proceeding of the Central Authority shall be invalid merely by reason of—

- (a) any vacancy in, or any defect in the constitution of, the Central Authority; or
- (b) any defect in the appointment of a person acting as the Chief Commissioner or as a Commissioner; or
- (c) any irregularity in the procedure of the Central Authority not affecting the merits of the case.

Section 13. Appointment of officers, experts, professionals and other employees of Central Authority

(1) The Central Government shall provide the Central Authority such number of officers and other employees as it considers necessary for the efficient performance of its functions under this Act.

(2) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the Central Authority appointed under this Act shall be such as may be prescribed.

(3) The Central Authority may engage, in accordance with the procedure specified by regulations, such number of experts and professionals of integrity and ability, who have special knowledge and experience in the areas of consumer rights and welfare, consumer policy, law, medicine, food safety, health, engineering, product safety, commerce, economics, public affairs or administration, as it deems necessary to assist it in the discharge of its functions under this Act.

Section 14. Procedure of Central Authority

(1) The Central Authority shall regulate the procedure for transaction of its business and allocation of its business amongst the Chief Commissioner and Commissioners as may be specified by regulations.

(2) The Chief Commissioner shall have the powers of general superintendence, direction and control in respect of all administrative matters of the Central Authority:

Provided that the Chief Commissioner may delegate such of his powers relating to administrative matters of the Central Authority, as he may think fit, to any Commissioner (including Commissioner of a regional office) or any other officer of the Central Authority.

Section 15. Investigation Wing

(1) The Central Authority shall have an Investigation Wing headed by a Director-General for the purpose of conducting inquiry or investigation under this Act as may be directed by the Central Authority.

(2) The Central Government may appoint a Director-General and such number of Additional Director-General, Director, Joint Director, Deputy Director and Assistant

Director, from amongst persons who have experience in investigation and possess such qualifications, in such manner, as may be prescribed.

(3) Every Additional Director-General, Director, Joint Director, Deputy Director and Assistant Director shall exercise his powers, and discharge his functions, subject to the general control, supervision and direction of the Director-General.

(4) The Director-General may delegate all or any of his powers to the Additional Director-General or Director, Joint Director or Deputy Director or Assistant Director, as the case may be, while conducting inquiries or investigations under this Act.

(5) The inquiries or the investigations made by the Director-General shall be submitted to the Central Authority in such form, in such manner and within such time, as may be specified by regulations.

Section 16. Power of District Collector

The District Collector (by whatever name called) may, on a complaint or on a reference made to him by the Central Authority or the Commissioner of a regional office, inquire into or investigate complaints regarding violation of rights of consumers as a class, on matters relating to violations of consumer rights, unfair trade practices and false or misleading advertisements, within his jurisdiction and submit his report to the Central Authority or to the Commissioner of a regional office, as the case may be.

Section 17. Complaints to authorities

A complaint relating to violation of consumer rights or unfair trade practices or false or misleading advertisements which are prejudicial to the interests of consumers as a class, may be forwarded either in writing or in electronic mode, to any one of the authorities, namely, the District Collector or the Commissioner of regional office or the Central Authority.

Section 18. Powers and functions of Central Authority

(1) The Central Authority shall—

- (a) protect, promote and enforce the rights of consumers as a class, and prevent violation of consumers' rights under this Act;
- (b) prevent unfair trade practices and ensure that no person engages himself in unfair trade practices;

(c) ensure that no false or misleading advertisement is made of any goods or services which contravenes the provisions of this Act or the rules or regulations made thereunder;

(d) ensure that no person takes part in the publication of any advertisement which is false or misleading.

(2) Without prejudice to the generality of the provisions contained in sub-section (1), the Central Authority may, for any of the purposes aforesaid, —

(a) inquire or cause an inquiry or investigation to be made into violations of consumer rights or unfair trade practices, either suo motu or on a complaint received or on the directions from the Central Government;

(b) file complaints before the District Commission, the State Commission or the National Commission, as the case may be, under this Act;

(c) intervene in any proceedings before the District Commission or the State Commission or the National Commission, as the case may be, in respect of any allegation of violation of consumer rights or unfair trade practices;

(d) review the matters relating to, and the factors inhibiting enjoyment of, consumer rights, including safeguards provided for the protection of consumers under any other law for the time being in force, and recommend appropriate remedial measures for their effective implementation;

(e) recommend adoption of international covenants and best international practices on consumer rights to ensure effective enforcement of consumer rights;

(f) undertake and promote research in the field of consumer rights;

(g) spread and promote awareness on consumer rights;

(h) encourage non-Governmental organisations and other institutions working in the field of consumer rights to co-operate and work with consumer protection agencies;

(i) mandate the use of unique and universal goods identifiers in such goods, as may be necessary, to prevent unfair trade practices and to protect consumers' interest;

(j) issue safety notices to alert consumers against dangerous or hazardous or unsafe goods or services;

(k) advise the Ministries and Departments of the Central and State Governments on consumer welfare measures;

(l) issue necessary guidelines to prevent unfair trade practices and protect consumers' interest.

✓ **LANDMARK USE OF SECTION 18 – Dark Patterns Guidelines, 2023**

Pursuant to its power under Section 18(2)(l), the CCPA on 30 November 2023 issued the "Guidelines for Prevention and Regulation of Dark Patterns, 2023". These guidelines identify 13 specified dark patterns and declare engagement in any of them to be an "unfair trade practice" under Section 2(47). See the dedicated cheat-sheet at the end of this booklet.

Section 19. Power of Central Authority to refer matter for investigation or to other Regulator

(1) The Central Authority may, after receiving any information or complaint or directions from the Central Government or of its own motion, conduct or cause to be conducted a preliminary inquiry as to whether there exists a prima facie case of violation of consumer rights or any unfair trade practice or any false or misleading advertisement, by any person, which is prejudicial to the public interest or to the interests of consumers, and if it is satisfied that there exists a prima facie case, it shall cause investigation to be made by the Director-General or by the District Collector.

(2) Where, after preliminary inquiry, the Central Authority is of the opinion that the matter is to be dealt with by a Regulator established under any other law for the time being in force, it may refer such matter to the concerned Regulator along with its report.

(3) For the purposes of investigation under sub-section (1), the Central Authority, the Director-General or the District Collector may call upon a person referred to in sub-section (1) and also direct him to produce any document or record in his possession.

Section 20. Power of Central Authority to recall goods, etc.

Where the Central Authority is satisfied on the basis of investigation that there is sufficient evidence to show violation of consumer rights or unfair trade practice by a person, it may pass such order as may be necessary, including—

- (a) recalling of goods or withdrawal of services which are dangerous, hazardous or unsafe;
- (b) reimbursement of the prices of goods or services so recalled to purchasers of such goods or services; and

(c) discontinuation of practices which are unfair and prejudicial to consumers' interest:

Provided that the Central Authority shall give the person an opportunity of being heard before passing an order under this section.

Section 21. Power of Central Authority to issue directions and penalties against false or misleading advertisements

(1) Where the Central Authority is satisfied after investigation that any advertisement is false or misleading and is prejudicial to the interest of any consumer or is in contravention of consumer rights, it may, by order, issue directions to the concerned trader or manufacturer or endorser or advertiser or publisher, as the case may be, to discontinue such advertisement or to modify the same in such manner and within such time as may be specified in that order.

(2) Notwithstanding the order passed under sub-section (1), if the Central Authority is of the opinion that it is necessary to impose a penalty in respect of such false or misleading advertisement, by a manufacturer or an endorser, it may, by order, impose on manufacturer or endorser a penalty which may extend to **ten lakh rupees**:

Provided that the Central Authority may, for every subsequent contravention by a manufacturer or endorser, impose a penalty, which may extend to **fifty lakh rupees**.

(3) Notwithstanding any order under sub-sections (1) and (2), where the Central Authority deems it necessary, it may, by order, prohibit the endorser of a false or misleading advertisement from making endorsement of any product or service for a period which may extend to **one year**:

Provided that the Central Authority may, for every subsequent contravention, prohibit such endorser from making endorsement in respect of any product or service for a period which may extend to **three years**.

(4) Where the Central Authority is satisfied after investigation that any person is found to publish, or is a party to the publication of, a misleading advertisement, it may impose on such person a penalty which may extend to **ten lakh rupees**.

(5) No endorser shall be liable to a penalty under sub-sections (2) and (3) if he has exercised due diligence to verify the veracity of the claims made in the advertisement regarding the product or service being endorsed by him.

(6) No person shall be liable to such penalty if he proves that he had published or arranged for the publication of such advertisement in the ordinary course of his business:

Provided that no such defence shall be available to such person if he had previous knowledge of the order passed by the Central Authority for withdrawal or modification of such advertisement.

(7) While determining the penalty under this section, regard shall be had to the following, namely:—

(a) the population and the area impacted or affected by such offence;

(b) the frequency and duration of such offence;

(c) the vulnerability of the class of persons likely to be adversely affected by such offence; and

(d) the gross revenue from the sales effected by virtue of such offence.

(8) The Central Authority shall give the person an opportunity of being heard before an order under this section is passed.

LEGISLATIVE PROPOSAL — Status as on 1 June 2026:

A draft **Consumer Protection (Amendment) Bill, 2023** circulated for stakeholder consultation in January 2024 had proposed to introduce surrogate-advertisement liability and to expand Section 89 to cover advertisers, advertising agencies and endorsers. The proposal **lapsed** on the dissolution of the 17th Lok Sabha in June 2024 and has not been re-introduced in the 18th Lok Sabha as of the cut-off date of this booklet. The position therefore remains governed by the un-amended Sections 21 and 89.

Section 22. Search and seizure

(1) For the purpose of conducting an investigation after preliminary inquiry under subsection (1) of Section 19, the Director-General or any other officer authorised by him in this behalf, or the District Collector, as the case may be, may, if he has any reason to believe that any person has violated any consumer rights or committed unfair trade practice or causes any false or misleading advertisement to be made, shall, —

- (a) enter at any reasonable time into any such premises and search for any document or record or article or any other form of evidence and seize such document, record, article or such evidence;
- (b) make a note or an inventory of such record or article; or
- (c) require any person to produce any record, register or other document or article.
- (2) The provisions of the Code of Criminal Procedure, 1973 (2 of 1974), relating to search and seizure shall apply, as far as may be, for search and seizure under this Act.
- (3) Every document, record or article seized under clause (a) of sub-section (1) or produced under clause (c) of that sub-section shall be returned to the person, from whom they were seized or who produced the same, within a period of **twenty days** of the date of such seizure or production, as the case may be, after copies thereof or extracts therefrom certified by that person, in such manner as may be prescribed, have been taken.
- (4) Where any article seized under sub-section (1) are subject to speedy or natural decay, the Director-General or such other officer may dispose of the article in such manner as may be prescribed.
- (5) In the case of articles other than the articles referred to in sub-section (4), provisions contained in clause (c) of sub-section (2) of Section 38 shall mutatis mutandis apply in relation to analysis or tests.

 STATUTORY REPLACEMENT – CrPC by BNSS, 2023:

The Code of Criminal Procedure, 1973 (2 of 1974) referenced in Section 22(2) stands **repealed and replaced** by the **Bharatiya Nagarik Suraksha Sanhita, 2023 (46 of 2023)** w.e.f. 1 July 2024. By virtue of Section 8(1) of the General Clauses Act, 1897, the reference in Section 22(2) is to be construed as a reference to the corresponding provisions of the BNSS, 2023 (search and seizure provisions are now contained in Chapter VII of BNSS – Sections 94 to 110).

Section 23. Designation of any statutory authority or body to function as Central Authority

The Central Government may, if it considers necessary, by notification, designate any statutory authority or body to exercise the powers and perform the functions of the Central Authority referred to in Section 10.

Section 24. Appeal

A person aggrieved by any order passed by the Central Authority under Sections 20 and 21 may file an appeal to the National Commission within a period of **thirty days** from the date of receipt of such order.

Section 25. Grants by Central Government

The Central Government may, after due appropriation made by Parliament by law in this behalf, make to the Central Authority grants of such sums of money as that Government may think fit for being utilised for the purposes of this Act.

Section 26. Accounts and audit

(1) The Central Authority shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such form and manner as may be prescribed in consultation with the Comptroller and Auditor-General of India.

(2) The accounts of the Central Authority shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred in connection with such audit shall be payable by the Central Authority to the Comptroller and Auditor-General of India.

(3) The Comptroller and Auditor-General of India or any other person appointed by him in connection with the audit of the accounts of the Central Authority shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India generally has, in connection with the audit of the Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect any of the offices of the Central Authority.

(4) The accounts of the Central Authority as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government which shall cause the same to be laid before each House of Parliament.

Section 27. Furnishing of annual reports, etc.

(1) The Central Authority shall prepare once in every year, in such form, manner and at such time as may be prescribed, an annual report giving full account of its activities

during the previous year and such other reports and returns, as may be directed, and copies of such report and returns shall be forwarded to the Central Government.

(2) A copy of the annual report received under sub-section (1) shall be laid, as soon as may be after it is received, before each House of Parliament.

Summary Table: Central Consumer Protection Authority (CCPA)

Component	Details
Establishment	By Central Government notification (S.10) — established 24 July 2020
Composition	Chief Commissioner + such number of other Commissioners as prescribed
Headquarters	National Capital Region of Delhi (Faridabad, Haryana)
Investigation Wing	Headed by Director-General (S.15)
Penalty for False / Misleading Advertisement (by Manufacturer or Endorser — S.21(2))	First contravention: up to ₹10 lakh Subsequent contravention: up to ₹50 lakh
Endorsement Ban (S.21(3))	First contravention: up to 1 year Subsequent contravention: up to 3 years
Penalty on Publisher (S.21(4))	Up to ₹10 lakh
Endorser's Statutory Defence (S.21(5))	Due diligence to verify veracity of claims
Appeal Period (S.24)	30 days to the National Commission from receipt of CCPA order
Return of Seized Documents (S.22(3))	Twenty days after taking certified copies / extracts

CHAPTER IV

CONSUMER DISPUTES REDRESSAL COMMISSION

A. DISTRICT COMMISSION (Sections 28 – 41)

Section 28. Establishment of District Consumer Disputes Redressal Commission

(1) The State Government shall, by notification, establish a District Consumer Disputes Redressal Commission, to be known as the District Commission, in each district of the State:

Provided that the State Government may, if it deems fit, establish more than one District Commission in a district.

(2) Each District Commission shall consist of—

(a) a President; and

(b) not less than two and not more than such number of members as may be prescribed, in consultation with the Central Government.

Section 29. Qualifications, etc., of President and members of District Commission

The Central Government may, by notification, make rules to provide for the qualifications, method of recruitment, procedure for appointment, term of office, resignation and removal of the President and members of the District Commission.

Section 30. Salaries, allowances and other terms and conditions of service of President and members of District Commission

The State Government may, by notification, make rules to provide for salaries and allowances and other terms and conditions of service of the President and members of the District Commission.

Section 31. Transitional provision

Any person appointed as President or, as the case may be, a member of the District Commission immediately before the commencement of this Act shall hold office as such as President or, as the case may be, as member till the completion of his term for which he has been appointed.

Section 32. Vacancy in office of member of District Commission

If, at any time, there is a vacancy in the office of the President or member of a District Commission, the State Government may, by notification, direct —

- (a) any other District Commission specified in that notification to exercise the jurisdiction in respect of that district also; or
- (b) the President or a member of any other District Commission specified in that notification to exercise the powers and discharge the functions of the President or member of that District Commission also.

Section 33. Officers and other employees of District Commission

- (1) The State Government shall provide the District Commission with such officers and other employees as may be required to assist the District Commission in the discharge of its functions.
- (2) The officers and other employees of the District Commission shall discharge their functions under the general superintendence of the President of the District Commission.
- (3) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the District Commission shall be such as may be prescribed.

Section 34. Jurisdiction of District Commission

- (1) Subject to the other provisions of this Act, the District Commission shall have jurisdiction to entertain complaints where the value of the goods or services **paid as consideration** does not exceed **fifty lakh rupees**:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit.

- (2) A complaint shall be instituted in a District Commission within the local limits of whose jurisdiction, —
 - (a) the opposite party or each of the opposite parties, where there are more than one, at the time of the institution of the complaint, ordinarily resides or carries on business or has a branch office or personally works for gain; or
 - (b) any of the opposite parties, where there are more than one, at the time of the institution of the complaint, actually and voluntarily resides, or carries on business or

has a branch office, or personally works for gain, provided that in such case the permission of the District Commission is given; or

(c) the cause of action, wholly or in part, arises; or

(d) the complainant resides or personally works for gain.

(3) The District Commission shall ordinarily function in the district headquarters and may perform its functions at such other place in the district, as the State Government may, in consultation with the State Commission, notify in the Official Gazette from time to time.

Section 35. Manner in which complaint shall be made

(1) A complaint, in relation to any goods sold or delivered or agreed to be sold or delivered or any service provided or agreed to be provided, may be filed with a District Commission by —

(a) the consumer, — (i) to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided; or (ii) who alleges unfair trade practice in respect of such goods or service;

(b) any recognised consumer association, whether the consumer to whom such goods are sold or delivered or agreed to be sold or delivered or such service is provided or agreed to be provided, or who alleges unfair trade practice in respect of such goods or service, is a member of such association or not;

(c) one or more consumers, where there are numerous consumers having the same interest, with the permission of the District Commission, on behalf of, or for the benefit of, all consumers so interested; or

(d) the Central Government, the Central Authority or the State Government, as the case may be:

Provided that the complaint under this sub-section may be filed electronically in such manner as may be prescribed.

Explanation. — For the purposes of this sub-section, "recognised consumer association" means any voluntary consumer association registered under any law for the time being in force.

(2) Every complaint filed under sub-section (1) shall be accompanied with such fee and payable in such manner, including electronic form, as may be prescribed.

Section 36. Proceedings before District Commission

(1) Every proceeding before the District Commission shall be conducted by the President of that Commission and at least one member thereof, sitting together:

Provided that where a member, for any reason, is unable to conduct a proceeding till it is completed, the President and the other member shall continue the proceeding from the stage at which it was last heard by the previous member.

(2) On receipt of a complaint made under Section 35, the District Commission may, by order, admit the complaint for being proceeded with or reject the same:

Provided that a complaint shall not be rejected under this section unless an opportunity of being heard has been given to the complainant:

Provided further that the admissibility of the complaint shall ordinarily be decided within **twenty-one days** from the date on which the complaint was filed.

(3) Where the District Commission does not decide the issue of admissibility of the complaint within the period so specified, it shall be deemed to have been admitted.

Section 37. Reference to mediation

(1) At the first hearing of the complaint after its admission, or at any later stage, if it appears to the District Commission that there exists elements of a settlement which may be acceptable to the parties, except in such cases as may be prescribed, it may direct the parties to give in writing, within five days, consent to have their dispute settled by mediation in accordance with the provisions of Chapter V.

(2) Where the parties agree for settlement by mediation and give their consent in writing, the District Commission shall, within five days of receipt of such consent, refer the matter for mediation, and in such case, the provisions of Chapter V, relating to mediation, shall apply.

Section 38. Procedure on admission of complaint

(1) The District Commission shall, on admission of a complaint, or in respect of cases referred for mediation on failure of settlement by mediation, proceed with such complaint.

(2) Where the complaint relates to any goods, the District Commission shall, — (a) refer a copy of the admitted complaint, within twenty-one days from the date of its admission to the opposite party mentioned in the complaint directing him to give his version of the

case within a period of thirty days or such extended period not exceeding fifteen days as may be granted by it; (b)–(g) follow the procedure for sample analysis, opportunity of hearing, objections to laboratory report and final order under Section 39.

(3) The District Commission shall, if the complaint admitted by it relates to goods in respect of which the procedure under sub-section (2) cannot be followed, or if the complaint relates to any services, refer a copy of such complaint to the opposite party directing him to give his version of the case within a period of thirty days or such extended period not exceeding fifteen days as may be granted by the District Commission.

(4) The District Commission may, in appropriate cases, refer any question involved in the consumer dispute to a person or committee or organisation or expert possessing the required qualifications or expert opinion, and such person/committee/organisation/expert shall furnish a report within a period as may be specified, and such report shall be made available to the parties who may file their objections thereto, if any, within a period of thirty days, or such extended period not exceeding fifteen days.

(5) The District Commission may, on its own motion or on application, and on being satisfied that the applicant was prevented by sufficient cause from appearing on the date of hearing, adjourn the hearing of the consumer dispute to such other date as it may deem fit.

(6) Where the consumer dispute is adjourned for more than thirty days, the District Commission shall record the reasons in writing for such adjournment.

(7) Every complaint shall be disposed of as expeditiously as possible and endeavour shall be made to decide the complaint within a period of **three months** from the date of receipt of notice by opposite party where the complaint does not require analysis or testing of the commodities, and within **five months** if it requires analysis or testing of commodities, or where the complaint is decided as per the procedure as specified in sub-section (3).

(8) The District Commission may, at any stage during the pendency of a complaint or inquiry or at its final disposal, on its own motion or on an application made by a party, pass such interim order or orders, including stay on the complaint or inquiry or attach any property of the opposite party, as it deems fit.

(9) For the purposes of this section, the District Commission shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (5 of 1908) while

trying a suit in respect of the following matters, namely: — (a) summoning and enforcing attendance of any defendant or witness and examining the witness on oath; (b) requiring discovery and production of any document or other material object as evidence; (c) reception of evidence on affidavits; (d) requisitioning of report of concerned analysis or test from appropriate laboratory or any other relevant source; (e) issuing of commissions for examination of any witness or document; and (f) requiring any person or electronic service provider to provide such information, documents or records, as may be specified in that behalf.

(10) Every proceeding before the District Commission shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Indian Penal Code (45 of 1860), and the District Commission shall be deemed to be a criminal court for the purposes of section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).

 STATUTORY REPLACEMENT – IPC / CrPC by BNS / BNSS, 2023:

By virtue of Section 8(1) of the General Clauses Act, 1897, the statutory cross-references in Section 38(10) are now to be construed as follows w.e.f. 1 July 2024: • Section 193 IPC (false evidence) ⇒ Section 229 of the Bharatiya Nyaya Sanhita, 2023 (45 of 2023) • Section 228 IPC (insult to public servant in judicial proceeding) ⇒ Section 267 of the BNS, 2023 • Section 195 CrPC (prosecution for offences against public justice) ⇒ Section 215 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (46 of 2023) • Chapter XXVI of CrPC (provisions as to offences affecting administration of justice) ⇒ Chapter XXVIII of the BNSS, 2023

(11) Where the complainant is a consumer referred to in sub-clause (v) of clause (5) of Section 2, the provisions of Order I Rule 8 of the First Schedule to the Code of Civil Procedure, 1908 (5 of 1908) shall apply subject to the modification that every reference therein to a suit or decree shall be construed as a reference to a complaint or the order of the District Commission thereon.

(12) In the event of death of a complainant who is a consumer or of the opposite party against whom the complaint has been filed, the provisions of Order XXII of the First Schedule to the Code of Civil Procedure, 1908 (5 of 1908) shall apply subject to the modification that every reference therein to the plaintiff or defendant shall be construed as a reference to the complainant or opposite party, as the case may be.

(13) No appeal or revision shall lie against an interim order passed by the District Commission unless such appeal or revision has been specifically allowed by the appellate forum.

(14) No proceeding before the District Commission shall be called in question in any court on the ground that the principles of natural justice have not been complied with.

Section 39. Findings of District Commission

(1) If, after the proceeding conducted under Section 38, the District Commission is satisfied that the goods complained against suffer from any of the defects specified in the complaint or that any of the allegations contained in the complaint about the services are proved, it shall issue an order to the opposite party directing him to do one or more of the following things, namely:—

- (a) to remove the defect from the goods in question;
- (b) to replace the goods with new goods of similar description which shall be free from any defect;
- (c) to return to the complainant the price, or, as the case may be, the charges paid by the complainant;
- (d) to pay such amount as may be awarded by it as compensation to the consumer for any loss or injury suffered by the consumer due to the negligence of the opposite party: Provided that the District Commission shall have the power to grant punitive damages in such circumstances as it deems fit;
- (e) to pay such amount as may be awarded by it as compensation in a product liability action under Chapter VI;
- (f) to remove the defects in goods or deficiencies in the services in question;
- (g) to discontinue the unfair trade practice or restrictive trade practice and not to repeat them;
- (h) not to offer the hazardous or unsafe goods for sale;
- (i) to withdraw the hazardous goods from being offered for sale;
- (j) to cease manufacture of hazardous goods and to desist from offering services which are hazardous in nature;

(k) to pay such sum as may be determined by it, if it is of the opinion that loss or injury has been suffered by a large number of consumers who are not identifiable conveniently: Provided that the minimum amount of sum so payable shall not be less than twenty-five per cent. of the value of such defective goods sold or services provided, as the case may be, to such consumers;

(l) to issue corrective advertisement to neutralise the effect of misleading advertisement at the cost of the opposite party responsible for issuing such misleading advertisement;

(m) to provide for adequate costs to parties; and

(n) to cease and desist from issuing any misleading advertisement.

(2) It shall be competent for the District Commission to grant such other relief as it deems fit.

Section 40. Review by District Commission in certain cases

The District Commission shall have the power to review any of the order passed by it if there is an error apparent on the face of the record, either of its own motion or on an application made by any of the parties within **thirty days** of such order.

Section 41. Appeal against order of District Commission

Any person aggrieved by an order made by the District Commission may prefer an appeal against such order to the State Commission on the grounds of facts or law within a period of **forty-five days** from the date of the order, in such form and manner, as may be prescribed:

Provided that the State Commission may entertain an appeal after the expiry of the said period of forty-five days, if it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person, who is required to pay any amount in terms of an order of the District Commission, shall be entertained by the State Commission unless the appellant has deposited **fifty per cent.** of that amount in the manner as may be prescribed:

Provided also that no appeal shall lie from any order passed under sub-section (1) of Section 81 by the District Commission pursuant to a settlement by mediation under Section 80.

B. STATE COMMISSION (Sections 42 – 52)

Section 42. Establishment of State Consumer Disputes Redressal Commission

(1) The State Government shall, by notification, establish a State Consumer Disputes Redressal Commission, to be known as the State Commission, in the State.

(2) The State Commission shall ordinarily function at the State capital and perform its functions at such other places as the State Government may in consultation with the State Commission notify in the Official Gazette:

Provided that the State Government may, by notification, establish regional benches of the State Commission, at such places, as it deems fit.

(3) Each State Commission shall consist of—

(a) a President; and

(b) not less than four or not more than such number of members as may be prescribed in consultation with the Central Government.

Section 43. Qualifications, etc., of President and members of State Commission

The Central Government may, by notification, make rules to provide for qualifications, method of recruitment, procedure for appointment, term of office, resignation and removal of the President and members of the State Commission.

Section 44. Salaries, allowances and other terms and conditions of service of President and members of State Commission

The State Government may, by notification, make rules to provide for salaries and allowances and other terms and conditions of service of the President and members of the State Commission.

Section 45. Transitional provision

Any person appointed as President or, as the case may be, a member of the State Commission immediately before the commencement of this Act shall hold office as such, as President or member, as the case may be, till the completion of his term.

Section 46. Officers and employees of State Commission

- (1) The State Government shall determine the nature and categories of the officers and other employees required to assist the State Commission in the discharge of its functions and provide the Commission with such officers and other employees as it may think fit.
- (2) The salaries and allowances and other conditions of service of the officers and other employees of the State Commission shall be such as may be prescribed.

Section 47. Jurisdiction of State Commission

- (1) Subject to the other provisions of this Act, the State Commission shall have jurisdiction—

(a) to entertain— (i) complaints where the value of the goods or services **paid as consideration** exceeds **fifty lakh rupees** but does not exceed **two crore rupees**:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit; and

(ii) appeals against the orders of any District Commission within the State; and

(b) to call for the records and pass appropriate orders in any consumer dispute which is pending before or has been decided by any District Commission within the State, where it appears to the State Commission that such District Commission has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in exercise of its jurisdiction illegally or with material irregularity.

- (2) The jurisdiction, powers and authority of the State Commission may be exercised by Benches thereof, and a Bench may be constituted by the President with one or more members as the President may deem fit:

Provided that the senior-most member shall preside over the Bench.

- (3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members are equally divided, they shall state the point or points on which they differ, and make a reference to the President who shall either hear the point or points himself or refer the case for hearing on such point or points by one or more of the other members and such point or points shall be decided according to the opinion of the majority of the members who have heard the case, including those who first heard it.

(4) Notwithstanding anything contained in this Act, the State Government, in consultation with the State Commission, may, by notification, transfer from time to time, any case pending before the District Commission to another District Commission, if the interest of justice so requires.

PECUNIARY JURISDICTION SOURCE – 2021 Rules

Section 47(1)(a)(i) reflects the limits substituted by the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021 (G.S.R. 903(E), 30 December 2021). The pre-amendment limits of "one crore to ten crore rupees" stand superseded.

Section 48. Transfer of cases

On the application of the complainant or of its own motion, the State Commission may, at any stage of the proceeding, transfer any complaint pending before a District Commission to another District Commission within the State if the interest of justice so requires.

Section 49. Procedure applicable to State Commission

(1) The provisions relating to complaints under Sections 35, 36, 37, 38 and 39 shall, with such modifications as may be necessary, be applicable to the disposal of complaints by the State Commission.

(2) Without prejudice to the provisions of sub-section (1), the State Commission may also declare any terms of contract, which is unfair to any consumer, to be null and void.

CRITICAL EXAM POINT – Unfair Contract Jurisdiction

Only the STATE Commission [S.49(2)] and NATIONAL Commission [S.59(2)] are empowered to declare an UNFAIR CONTRACT null and void. The District Commission has no such power. This is one of the most frequently asked points in objective papers.

Section 50. Review by State Commission in certain cases

The State Commission shall have the power to review any of the order passed by it if there is an error apparent on the face of the record, either of its own motion or on an application made by any of the parties within **thirty days** of such order.

Section 51. Appeal to National Commission

(1) Any person, aggrieved by an order made by the State Commission in exercise of its powers conferred by sub-clause (i) of clause (a) of sub-section (1) of Section 47, may prefer an appeal against such order to the National Commission within a period of **thirty days** from the date of the order in such form, and manner and on payment of such fee as may be prescribed:

Provided that the National Commission may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person who is required to pay any amount in terms of an order of the State Commission shall be entertained by the National Commission unless such person has deposited in the prescribed manner **fifty per cent.** of that amount:

Provided also that no appeal shall lie from any order passed under sub-section (1) of Section 81 by the State Commission pursuant to a settlement by mediation under Section 80.

(2) Every appeal under sub-section (1) shall be heard as expeditiously as possible and endeavour shall be made to finally dispose of the appeal within a period of **ninety days** from the date of its admission.

Section 52. Hearing of appeal

An appeal filed before the State Commission or the National Commission, as the case may be, shall be heard as expeditiously as possible and an endeavour shall be made to finally dispose of the appeal within a period of ninety days from the date of its admission:

Provided that no adjournment shall ordinarily be granted by the State Commission or the National Commission, as the case may be, unless sufficient cause is shown and the reasons for grant of adjournment have been recorded in writing by such Commission:

Provided further that the State Commission or the National Commission, as the case may be, shall make such orders as to the costs occasioned by the adjournment, as may be specified by regulations:

Provided also that in the event of an appeal being disposed of after the period so specified, the State Commission or the National Commission, as the case may be, shall record in writing, the reasons for the same at the time of disposing of the said appeal.

C. NATIONAL COMMISSION (Sections 53 – 73)

Section 53. Establishment of National Consumer Disputes Redressal Commission

(1) The Central Government shall, by notification, establish a National Consumer Disputes Redressal Commission, to be known as the National Commission.

(2) The National Commission shall ordinarily function at the National Capital Region and perform its functions at such other places as the Central Government may in consultation with the National Commission notify in the Official Gazette:

Provided that the Central Government may, by notification, establish regional Benches of the National Commission, at such places, as it deems fit.

Section 54. Composition of National Commission

The National Commission shall consist of—

(a) a President; and

(b) not less than four and not more than such number of members as may be prescribed.

Section 55. Qualifications, etc., of President and members of National Commission

(1) The Central Government may, by notification, make rules to provide for qualifications, appointment, term of office, salaries and allowances, resignation, removal and other terms and conditions of service of the President and members of the National Commission:

Provided that the President and members of the National Commission shall be appointed by the Central Government on the recommendation of a Selection Committee consisting of such persons and in such manner as may be prescribed.

Section 56. Transitional provision

Any person appointed as President or, as the case may be, a member of the National Commission immediately before the commencement of this Act shall hold office as such, as President or, as the case may be, as member, till the completion of his term.

Section 57. Other officers and employees of National Commission

- (1) The Central Government shall provide, in consultation with the President of the National Commission, such number of officers and other employees to assist the National Commission in the discharge of its functions as it may think fit.
- (2) The officers and other employees of the National Commission shall discharge their functions under the general superintendence of the President of the National Commission.
- (3) The salaries and allowances payable to, and the other terms and conditions of service of, the officers and other employees of the National Commission shall be such as may be prescribed.

Section 58. Jurisdiction of National Commission

- (1) Subject to the other provisions of this Act, the National Commission shall have jurisdiction—

(a) to entertain— (i) complaints where the value of the goods or services **paid as consideration** exceeds **two crore rupees**:

Provided that where the Central Government deems it necessary so to do, it may prescribe such other value, as it deems fit;

- (ii) appeals against the orders of any State Commission;
(iii) appeals against the orders of the Central Authority; and
(iv) revision petitions; and

(b) to call for the records and pass appropriate orders in any consumer dispute which is pending before or has been decided by any State Commission where it appears to the National Commission that such State Commission has exercised a jurisdiction not vested in it by law, or has failed to exercise a jurisdiction so vested, or has acted in the exercise of its jurisdiction illegally or with material irregularity.

- (2) The jurisdiction, powers and authority of the National Commission may be exercised by Benches thereof, and a Bench may be constituted by the President with one or more members as the President may deem fit:

Provided that the senior-most member of the Bench shall preside over the Bench.

- (3) Where the members of a Bench differ in opinion on any point, the points shall be decided according to the opinion of the majority, if there is a majority, but if the members

are equally divided, the procedure of reference to the President shall apply mutatis mutandis.

Pecuniary Jurisdiction Table — Consumer Commissions (CURRENT LIMITS w.e.f. 30 December 2021)

Commission	Pecuniary Jurisdiction (value of goods / services PAID AS CONSIDERATION)	Source
District Commission	Up to ₹50 lakh	S.34(1) read with the Consumer Protection (Jurisdiction) Rules, 2021
State Commission	Above ₹50 lakh and up to ₹2 crore	S.47(1)(a)(i) read with the 2021 Rules
National Commission	Above ₹2 crore	S.58(1)(a)(i) read with the 2021 Rules

HISTORICAL NOTE — Pre-2021 Limits (for question framing):

As originally enacted, the CPA 2019 set the limits at District (up to ₹1 crore), State (₹1 crore to ₹10 crore) and National (above ₹10 crore). These ORIGINAL figures still appear in the un-amended bare Act text of Sections 34, 47 and 58. The amendment was effected only by **subordinate legislation (the 2021 Rules)**; the parent Act has not been re-enacted. Aspirants must reproduce the CURRENT (2021) limits in answers.

Section 59. Procedure applicable to National Commission

(1) The provisions relating to complaints under Sections 35, 36, 37, 38 and 39 shall, with such modifications as may be considered necessary, be applicable to the disposal of complaints by the National Commission.

(2) Without prejudice to sub-section (1), the National Commission may also declare any terms of contract, which is unfair to any consumer, to be null and void.

Section 60. Review by National Commission in certain cases

The National Commission shall have the power to review any of the order passed by it if there is an error apparent on the face of the record, either of its own motion or on an application made by any of the parties within **thirty days** of such order.

Section 61. Power to set aside ex parte orders

Where an order is passed by the National Commission ex parte, the aggrieved party may make an application to the Commission for setting aside such order.

Section 62. Transfer of cases

On the application of the complainant or of its own motion, the National Commission may, at any stage of the proceeding, in the interest of justice, transfer any complaint pending before the District Commission of one State to a District Commission of another State or before one State Commission to another State Commission.

Section 63. Vacancy in office of President of National Commission

(1) When the office of the President of the National Commission is vacant or he is, by reason of absence or otherwise, unable to perform the duties of his office, these shall be performed by the senior-most member of the National Commission:

Provided that where such senior-most member is not a judicial member, the senior-most judicial member of the National Commission shall perform the duties of the President.

Section 64. Vacancies or defects in appointment not to invalidate orders

No act or proceeding of the District Commission, the State Commission or the National Commission shall be invalid by reason only of the existence of any vacancy amongst its members or any defect in the constitution thereof.

Section 65. Service of notice, etc.

(1) All notices, required by this Act to be served, shall be served in the manner provided for the service of summons in the Code of Civil Procedure, 1908 (5 of 1908).

(2) Notwithstanding anything contained in sub-section (1), the notice required by this Act may be served on an electronic service provider at the address provided by it on the electronic platform from where it provides its services as such and for this purpose, the electronic service provider shall designate a nodal officer to accept and process such notices.

(3) Where the notice, in relation to a complaint, is sought to be served on a respondent through electronic mode, the District Commission, the State Commission or the National Commission, as the case may be, shall require the complainant to serve such notice through email or by other electronic means.

Section 66. Experts to assist National Commission or State Commission

Where the National Commission or the State Commission, as the case may be, on an application by a complainant or otherwise, is of the opinion that it involves the larger interest of consumers, it may direct any individual or organisation or expert to assist the National Commission or the State Commission, as the case may be.

Section 67. Appeal against order of National Commission

Any person, aggrieved by an order made by the National Commission in exercise of its powers conferred by sub-clause (i) or (ii) of clause (a) of sub-section (1) of Section 58, may prefer an appeal against such order to the Supreme Court within a period of **thirty days** from the date of the order:

Provided that the Supreme Court may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing it within that period:

Provided further that no appeal by a person, who is required to pay any amount in terms of an order of the National Commission, shall be entertained by the Supreme Court unless the appellant has deposited **fifty per cent.** of that amount in the manner as may be prescribed.

Section 68. Finality of orders

Every order of a District Commission, the State Commission or the National Commission, as the case may be, shall, if no appeal has been preferred against such order under the provisions of this Act, be final.

Section 69. Limitation period

(1) The District Commission, the State Commission or the National Commission shall not admit a complaint unless it is filed within **two years** from the date on which the cause of action has arisen.

(2) Notwithstanding anything contained in sub-section (1), a complaint may be entertained after the period specified in sub-section (1), if the complainant satisfies the District Commission, the State Commission or the National Commission, as the case may be, that he had sufficient cause for not filing the complaint within such period:

Provided that no such complaint shall be entertained unless the National Commission, the State Commission or the District Commission, as the case may be, records its reasons for condoning such delay.

Section 70. Administrative control

(1) The National Commission shall have administrative control over all the State Commissions in the following matters, namely:— (a) calling for periodical returns regarding institution, disposal and pendency of cases; (b) issuance of instructions regarding adoption of uniform procedure in the hearing of matters, prior service of copies of documents produced by one party to the opposite parties, furnishing of English translation of judgments written in any language, speedy grant of copies of documents; (c) generally overseeing the functioning of the State Commissions and the District Commissions to ensure that the objects and purposes of the Act are best served, without interfering with their quasi-judicial freedom.

(2) There shall be a monitoring cell to be constituted by the President of the National Commission to oversee the functioning of the State Commissions from the administrative point of view.

(3) The State Commission shall have administrative control over all the District Commissions within its jurisdiction in the matters referred to in sub-section (1).

(4) The National Commission shall furnish to the Central Government from time to time, such information regarding the disposal of cases by the District Commissions, the State Commissions and the National Commission, in such form as may be prescribed.

(5) The State Commission shall furnish to the State Government from time to time such information regarding the disposal of cases by the District Commissions and the State Commission in such form as may be prescribed.

Section 71. Enforcement of orders of District Commission, State Commission and National Commission

Every order made by the District Commission, the State Commission or the National Commission shall be enforced by it in the same manner as if it were a decree made by a Court in a suit before it, and the provisions of Order XXI of the First Schedule to the Code of Civil Procedure, 1908 (5 of 1908) shall, as far as may be, applicable, subject to the modification that every reference therein to the decree shall be construed as reference to the order made under this Act.

Section 72. Penalty for non-compliance of order

(1) Whoever fails to comply with any order made by the District Commission or the State Commission or the National Commission, as the case may be, shall be punishable with imprisonment for a term which shall not be less than **one month**, but which may extend to **three years**, or with fine, which shall not be less than **twenty-five thousand rupees**, but which may extend to **one lakh rupees**, or with both.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), the District Commission, the State Commission or the National Commission, as the case may be, shall have the power of a Judicial Magistrate of the first class for the trial of offences under this Act, and on conferment of such powers, the District Commission or the State Commission or the National Commission, as the case may be, shall be deemed to be a Judicial Magistrate of the first class for the purposes of the Code of Criminal Procedure, 1973 (2 of 1974).

(3) All offences under this Act may be tried summarily by the District Commission or the State Commission or the National Commission, as the case may be.

STATUTORY REPLACEMENT – CrPC by BNSS:

The reference to the Code of Criminal Procedure, 1973 (2 of 1974) in Section 72(2) is to be read, w.e.f. 1 July 2024, as a reference to the **Bharatiya Nagarik Suraksha Sanhita, 2023 (46 of 2023)**. The summary-trial procedure now flows from Chapter XXII (Sections 283–288) of the BNSS.

Section 73. Appeal against order passed under Section 72

(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (2 of 1974), an appeal under Section 72, both on facts and on law, shall lie – (a) from the order made by the District Commission to the State Commission; (b) from the order made by the State Commission to the National Commission; and (c) from the order made by the National Commission to the Supreme Court.

(2) Except as provided in sub-section (1), no appeal shall lie before any court, from any order of a District Commission or a State Commission or the National Commission, as the case may be.

(3) Every appeal under this section shall be preferred within a period of **thirty days** from the date of order of a District Commission or a State Commission or the National Commission, as the case may be:

Provided that the State Commission or the National Commission or the Supreme Court, as the case may be, may entertain an appeal after the expiry of the said period of thirty days, if it is satisfied that the appellant had sufficient cause for not preferring the appeal within the period of thirty days.

Appeal Timeline Table

From	To	Time Limit	Pre-deposit Requirement
District Commission (original / S.39 order)	State Commission	45 days (S.41)	50% of awarded amount (2nd proviso to S.41)
State Commission (S.47(1)(a)(i) order)	National Commission	30 days (S.51)	50% of awarded amount (2nd proviso to S.51(1))
National Commission (S.58(1)(a)(i) or (ii) order)	Supreme Court	30 days (S.67)	50% of awarded amount (2nd proviso to S.67)
Order of CCPA (under S.20 / S.21)	National Commission	30 days (S.24)	Not specified
Order under S.72 (non-compliance penalty)	State / National Commission / Supreme Court	30 days (S.73)	Not specified

CHAPTER V

MEDIATION

Section 74. Establishment of consumer mediation cell

- (1) The State Government shall, in consultation with the State Commission, establish, by notification, a consumer mediation cell to be attached to each of the District Commissions and the State Commissions of that State.
- (2) The Central Government shall establish, by notification, a consumer mediation cell to be attached to the National Commission and each of the regional Benches.
- (3) A consumer mediation cell shall consist of such persons as may be prescribed.
- (4) Every consumer mediation cell shall maintain— (a) a list of empanelled mediators; (b) a list of cases handled by the cell; (c) record of proceeding; and (d) any other information as may be specified by regulations.
- (5) Every consumer mediation cell shall submit a quarterly report to the District Commission, State Commission or the National Commission to which it is attached, in the manner specified by regulations.

Section 75. Empanelment of mediators

- (1) For the purpose of mediation, the National Commission or the State Commission or the District Commission, as the case may be, shall prepare a panel of the mediators to be maintained by the consumer mediation cell attached to it, on the recommendation of a selection committee consisting of the President and a member of that Commission.
- (2) The qualifications and experience required for empanelment as mediator, the procedure for empanelment, the manner of training empanelled mediators, the fee payable to empanelled mediator, the terms and conditions for empanelment, the code of conduct for empanelled mediators, the grounds on which, and the manner in which, empanelled mediators shall be removed or empanelment shall be cancelled and other matters relating thereto, shall be such as may be specified by regulations.
- (3) The panel of mediators prepared under sub-section (1) shall be valid for a period of five years, and the empanelled mediators shall be eligible to be re-empanelled for another term, subject to such conditions as may be specified by regulations.

Section 76. Nomination of mediators from panel

The District Commission, the State Commission or the National Commission shall, while nominating any person from the panel of mediators referred to in Section 75, consider his suitability for resolving the consumer dispute involved.

Section 77. Duty of mediator to disclose certain facts

It shall be the duty of the mediator to disclose— (a) any personal, professional or financial interest in the outcome of the consumer dispute; (b) the circumstances which may give rise to a justifiable doubt as to his independence or impartiality; and (c) such other facts as may be specified by regulations.

Section 78. Replacement of mediator in certain cases

Where the District Commission or the State Commission or the National Commission, as the case may be, is satisfied, on the information furnished by the mediator or on the information received from any other person including parties to the complaint and after hearing the mediator, it shall replace such mediator by another mediator.

Section 79. Procedure for mediation

- (1) The mediation shall be held in the consumer mediation cell attached to the District Commission, the State Commission or the National Commission, as the case may be.
- (2) Where a consumer dispute is referred for mediation by the District Commission or the State Commission or the National Commission, as the case may be, the mediator nominated by such Commission shall have the consumer dispute in respect of which he has been nominated, within such time and in such manner as may be specified by regulations.

Section 80. Settlement through mediation

- (1) Pursuant to mediation, if an agreement is reached between the parties with respect to all of the issues involved in the consumer dispute or with respect to only some of the issues, the terms of such agreement shall be reduced to writing accordingly, and signed by the parties to such dispute or their authorised representatives.
- (2) The mediator shall prepare a settlement report of the settlement and forward the signed agreement along with such report to the concerned Commission.

(3) Where no agreement is reached between the parties within the specified time or the mediator is of the opinion that settlement is not possible, he shall prepare his report accordingly and submit the same to the concerned Commission.

Section 81. Recording settlement and passing of order

(1) The District Commission or the State Commission or the National Commission, as the case may be, shall, within seven days of the receipt of the settlement report, pass suitable order recording such settlement of consumer dispute and dispose of the matter accordingly.

(2) Where the consumer dispute is settled only in part, the District Commission or the State Commission or the National Commission, as the case may be, shall record settlement of the issues which have been so settled and continue to hear other issues involved in such consumer dispute.

(3) Where the consumer dispute could not be settled by mediation, the District Commission or the State Commission or the National Commission, as the case may be, shall continue to hear all the issues involved in such consumer dispute.

Mediation Timeline & Procedural Map

Stage	Time-limit	Authority / Provision
Consent to mediation after admission of complaint	5 days to give written consent	S.37(1) / S.37(2)
Reference to mediation upon receipt of consent	Within 5 days	S.37(2)
Empanelment of mediators – validity of panel	5 years (re-empanelment permissible)	S.75(3)
Settlement / report by mediator	Within time specified by regulations	S.80(1)–(3)
Order on settlement by Commission	7 days of receipt of settlement report	S.81(1)
Order is final – no appeal lies	—	3rd proviso to S.41 & S.51(1)

CHAPTER VI

PRODUCT LIABILITY

Section 82. Application of Chapter

The provisions of this Chapter shall apply to every claim for compensation under a product liability action by a complainant for any harm caused by a defective product manufactured by a product manufacturer or serviced by a product service provider or sold by a product seller.

Section 83. Product liability action

A product liability action may be brought by a complainant against a product manufacturer or a product service provider or a product seller, as the case may be, for any harm caused to him on account of a defective product.

Section 84. Liability of product manufacturer

(1) A product manufacturer shall be liable in a product liability action, if—

- (a) the product contains a manufacturing defect; or
- (b) the product is defective in design; or
- (c) there is a deviation from manufacturing specifications; or
- (d) the product does not conform to the express warranty; or
- (e) the product fails to contain adequate instructions of correct usage to prevent any harm or any warning regarding improper or incorrect usage.

(2) A product manufacturer shall be liable in a product liability action even if he proves that he was not negligent or fraudulent in making the express warranty of a product.

Section 85. Liability of product service provider

A product service provider shall be liable in a product liability action, if—

- (a) the service provided by him was faulty or imperfect or deficient or inadequate in quality, nature or manner of performance which is required to be provided by or under any law for the time being in force, or pursuant to any contract or otherwise; or
- (b) there was an act of omission or commission or negligence or conscious withholding any information which caused harm; or

- (c) the service provider did not issue adequate instructions or warnings to prevent any harm; or
- (d) the service did not conform to express warranty or the terms and conditions of the contract.

Section 86. Liability of product sellers

A product seller who is not a product manufacturer shall be liable in a product liability action, if—

- (a) he has exercised substantial control over the designing, testing, manufacturing, packaging or labelling of a product that caused harm; or
- (b) he has altered or modified the product and such alteration or modification was the substantial factor in causing the harm; or
- (c) he has made an express warranty of a product independent of any express warranty made by a manufacturer and such product failed to conform to the express warranty made by the product seller which caused the harm; or
- (d) the product has been sold by him and the identity of product manufacturer of such product is not known, or if known, the service of notice or process or warrant cannot be effected on him, or he is not subject to the law which is in force in India or the order, if any, passed or to be passed cannot be enforced against him; or
- (e) he failed to exercise reasonable care in assembling, inspecting or maintaining such product or he did not pass on the warnings or instructions of the product manufacturer regarding the dangers involved or proper usage of the product while selling such product and such failure was the proximate cause of the harm.

Section 87. Exceptions to product liability action

- (1) A product liability action cannot be brought against the product seller if, at the time of harm, the product was misused, altered, or modified.
- (2) In any product liability action based on the failure to provide adequate warnings or instructions, the product manufacturer shall not be liable, if—
 - (a) the product was purchased by an employer for use at the workplace and the product manufacturer had provided warnings or instructions to such employer;
 - (b) the product was sold as a component or material to be used in another product and necessary warnings or instructions were given by the product manufacturer to

the purchaser of such component or material, but the harm was caused to the complainant by use of the end product in which such component or material was used;

(c) the product was one which was legally meant to be used or dispensed only by or under the supervision of an expert or a class of experts and the product manufacturer had employed reasonable means to give the warnings or instructions for usage of such product to such expert or class of experts; or

(d) the complainant, while using such product, was under the influence of alcohol or any prescription drug which had not been prescribed by a medical practitioner.

(3) A product manufacturer shall not be liable for failure to instruct or warn about a danger which is obvious or commonly known to the user or consumer of such product or which, such user or consumer, ought to have known, taking into account the characteristics of such product.

Product Liability – Summary Table

Liabe Party	Statutory Section	Grounds of Liability
Product Manufacturer	S.84	Manufacturing defect • design defect • deviation from specs • non-conformity to express warranty • inadequate instructions / warnings (liable even if non-negligent in respect of express warranty)
Product Service Provider	S.85	Faulty / deficient service • act of negligence, omission, commission or conscious withholding of information • inadequate instructions / warnings • non-conformity with express warranty
Product Seller (non-manufacturer)	S.86	Substantial control over design/testing/manufacture • alteration / modification • independent express warranty • inability to identify or proceed against manufacturer • failure to exercise reasonable care or pass on warnings
Exceptions	S.87	Misuse / alteration / modification by user • adequate warnings already given to employer / intermediate purchaser / expert dispenser • obvious or commonly-known danger • user under influence of unprescribed alcohol or drug

CHAPTER VII

OFFENCES AND PENALTIES

Section 88. Penalty for non-compliance of direction of Central Authority

Whoever, fails to comply with any direction of the Central Authority under **Sections 20 and 21**, shall be punished with imprisonment for a term which may extend to **six months** or with fine which may extend to **twenty lakh rupees**, or with both.

Section 89. Punishment for false or misleading advertisement

Any **manufacturer or service provider** who causes a false or misleading advertisement to be made which is prejudicial to the interest of consumers shall be punished with imprisonment for a term which may extend to **two years** and with fine which may extend to **ten lakh rupees**; and for every subsequent offence, be punished with imprisonment for a term which may extend to **five years** and with fine which may extend to **fifty lakh rupees**.

Section 90. Punishment for manufacturing for sale or storing, selling or distributing or importing products containing adulterant

(1) Whoever, by himself or by any other person on his behalf, manufactures for sale or stores or sells or distributes or imports any product containing an adulterant shall be punished, if such act—

- (a) does not result in any injury to the consumer, with imprisonment for a term which may extend to **six months** and with fine which may extend to **one lakh rupees**;
- (b) causing injury not amounting to grievous hurt to the consumer, with imprisonment for a term which may extend to **one year** and with fine which may extend to **three lakh rupees**;
- (c) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to **seven years** and with fine which may extend to **five lakh rupees**; and
- (d) results in the death of a consumer, with imprisonment for a term which shall not be less than **seven years**, but which may extend to imprisonment for **life** and with fine which shall not be less than **ten lakh rupees**.

(2) The offences under clauses (c) and (d) of sub-section (1) shall be cognizable and non-bailable.

(3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence.

Explanation. — For the purposes of this section, —

(a) "adulterant" means any material including extraneous matter which is employed or used for making a product unsafe;

(b) "grievous hurt" shall have the same meaning as assigned to it in Section 320 of the Indian Penal Code.

Section 91. Punishment for manufacturing for sale or for storing or selling or distributing or importing spurious goods

(1) Whoever, by himself or by any other person on his behalf, manufactures for sale or stores or sells or distributes or imports any spurious goods shall be punished, if such act—

(a) causing injury not amounting to grievous hurt to the consumer, with imprisonment for a term which may extend to **one year** and with fine which may extend to **three lakh rupees**;

(b) causing injury resulting in grievous hurt to the consumer, with imprisonment for a term which may extend to **seven years** and with fine which may extend to **five lakh rupees**;

(c) results in the death of a consumer, with imprisonment for a term which shall not be less than **seven years**, but may extend to imprisonment for **life** and with fine which shall not be less than **ten lakh rupees**.

(2) The offences under clauses (b) and (c) of sub-section (1) shall be cognizable and non-bailable.

(3) Notwithstanding the punishment under sub-section (1), the court may, in case of first conviction, suspend any licence issued to the person referred to in that sub-section, under any law for the time being in force, for a period up to two years, and in case of second or subsequent conviction, cancel the licence.

Section 92. Cognizance of offence by court

No cognizance shall be taken by a competent court of any offence under **Sections 88 and 89** except on a complaint filed by the **Central Authority** or any officer authorised by it in this behalf.

Section 93. Vexatious search

The **Director-General or any other officer**, exercising powers under **Section 22**, who knows that there are no reasonable grounds for so doing, and yet —

(a) searches, or causes to be searched any premises; or

(b) seizes any record, register or other document or article,

shall, for every such offence, be punished with imprisonment for a term which may extend to **one year**, or with fine which may extend to **ten thousand rupees** or with both.

Procedural Offences (Sections 88, 89, 92, 93)

Section	Offence	Penalty
S.72(1)	Non-compliance of any order of the District / State / National Commission	Imprisonment 1 month to 3 years , or fine ₹25,000 to ₹1 lakh , or both
S.88	Failure to comply with any direction of the Central Authority under Sections 20 and 21	Imprisonment up to 6 months , or fine up to ₹20 lakh , or both
S.89	Causing false or misleading advertisement by a manufacturer or service provider (prejudicial to consumers)	First: Imp. up to 2 years + fine up to ₹10 lakh Subsequent: Imp. up to 5 years + fine up to ₹50 lakh
S.92	Cognizance bar — court takes cognizance of offences under S.88 / S.89 only on complaint by CCPA or authorised officer	Procedural (no penalty)
S.93	Vexatious search by Director-General / officer under S.22 without reasonable grounds	Imp. up to 1 year , or fine up to ₹10,000 , or both

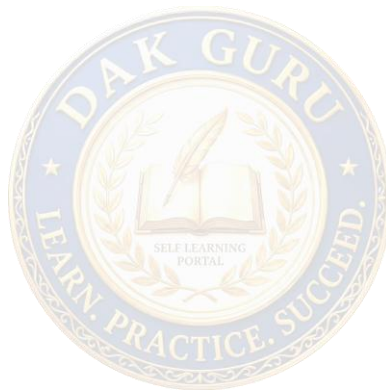
Product Offences — Adulterants & Spurious Goods (Sections 90 & 91)

Section / Act	Resulting Harm	Imprisonment	Fine
S.90(1)(a) Adulterant — manufacture / store / sell / distribute / import	No injury	Up to 6 months	Up to ₹1 lakh
S.90(1)(b) Adulterant	Injury not amounting to grievous hurt	Up to 1 year	Up to ₹3 lakh
S.90(1)(c) Adulterant *(cognizable / non-bailable)*	Injury resulting in grievous hurt	Up to 7 years	Up to ₹5 lakh
S.90(1)(d) Adulterant *(cognizable / non-bailable)*	Death of consumer	Not less than 7 years , may extend to life	Not less than ₹10 lakh
S.91(1)(a) Spurious goods — manufacture / store / sell / distribute / import	Injury not amounting to grievous hurt	Up to 1 year	Up to ₹3 lakh
S.91(1)(b) Spurious goods *(cognizable / non-bailable)*	Injury resulting in grievous hurt	Up to 7 years	Up to ₹5 lakh
S.91(1)(c) Spurious goods *(cognizable / non-bailable)*	Death of consumer	Not less than 7 years , may extend to life	Not less than ₹10 lakh

ANCILLARY PENALTIES under Sections 90(3) and 91(3)

In addition to the imprisonment and fine, the court convicting under Sections 90 or 91 may, on **FIRST CONVICTION**, **SUSPEND** any licence held by the offender (under any

law in force) for up to TWO years; and on SECOND or SUBSEQUENT CONVICTION, CANCEL the licence.



CHAPTER VIII

MISCELLANEOUS

Section 94. Measures to prevent unfair trade practices in e-commerce, direct selling, etc.

For the purposes of preventing unfair trade practices in e-commerce, direct selling and also to protect the interest and rights of consumers, the Central Government may take such measures in the manner as may be prescribed.

✓ RULES UNDER SECTION 94

The Central Government has, in exercise of this power, notified (i) the Consumer Protection (E-Commerce) Rules, 2020, (ii) the Consumer Protection (Direct Selling) Rules, 2021, and (iii) the CCPA Guidelines for Prevention of Misleading Advertisements and Endorsements for Misleading Advertisements, 2022, and (iv) the Dark Patterns Guidelines, 2023.

Section 95. Presidents, members, Chief Commissioner, Commissioner and certain officers to be public servants

The Presidents and members of the District Commission, the State Commission and the National Commission, and officers and other employees thereof, the Chief Commissioner and the Commissioner of the Central Authority, the **Director-General, the Additional Director-General, the Director, the Joint Director, the Deputy Director and the Assistant Director** and all other officers and employees of the Central Authority and other persons performing any duty under this Act, while acting or purporting to act in pursuance of any of the provisions of this Act, shall be deemed to be public servants within the meaning of **Section 21 of the Indian Penal Code**.

🔔 STATUTORY REPLACEMENT — IPC by BNS:

The reference to **Section 21 of the Indian Penal Code, 1860 (definition of "public servant")** in Section 95 is now to be construed, w.e.f. 1 July 2024, as a reference to **Section 2(28) of the Bharatiya Nyaya Sanhita, 2023 (45 of 2023)**, which is the corresponding provision.

Section 96. Compounding of offences

(1) Any offence punishable under **Sections 88 and 89**, may, either before or after the institution of the prosecution, be compounded, on payment of such amount as may be prescribed:

Provided that no compounding of such offence shall be made without the **leave of the court** before which a complaint has been filed under Section 92:

Provided further that such sum shall not, in any case, exceed the maximum amount of the fine, which may be imposed under this Act for the offence so compounded.

(2) The **Central Authority** or any officer as may be specially authorised by him in this behalf, may compound offences under sub-section (1).

(3) Nothing in sub-section (1) shall apply to person who commits the same or similar offence, within a period of **three years** from the date on which the first offence, committed by him, was compounded.

Explanation.— For the purposes of this sub-section, any second or subsequent offence committed after the expiry of a period of three years from the date on which the offence was previously compounded, shall be deemed to be a first offence.

(4) Where an offence has been compounded under sub-section (1), no proceeding or further proceeding, as the case may be, shall be taken against the offender in respect of the offence so compounded.

(5) The acceptance of the sum of money for compounding an offence in accordance with sub-section (1) by the Central Authority or an officer of the Central Authority empowered in this behalf shall be deemed to amount to an **acquittal** within the meaning of the Code of Criminal Procedure, 1973.

Section 97. Manner of crediting penalty

The penalty collected under **Section 21** and the amount collected under **Section 96** shall be credited to such **fund as may be prescribed**.

Section 98. Protection of action taken in good faith

No suit, prosecution or other legal proceeding shall lie against the Presidents and members of the District Commission, the State Commission and the National

Commission, the Chief Commissioner, the Commissioner, any officer or employee and other person performing any duty under this Act, for any act which is in good faith done or intended to be done in pursuance of this Act or under any rule or order made thereunder.

Section 99. Power to give directions by Central Government

(1) Without prejudice to the foregoing provisions of this Act, the Central Authority, shall, in exercise of its powers or the performance of its functions under this Act, be bound by such directions on questions of policy, as the Central Government may give in writing to it from time to time:

Provided that the Central Authority shall, as far as practicable, be given an opportunity to express its views before any direction is given under this sub-section.

(2) The decision of the Central Government whether a question is one of policy or not shall be final.

Section 100. Act not in derogation of any other law

The provisions of this Act shall be in addition to and not in derogation of the provisions of any other law for the time being in force.

Section 101. Power of Central Government to make rules

(1) The Central Government may, by notification, make rules for carrying out any of the provisions contained in this Act.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for, inter alia —

- (a) the other class or classes of persons including public utility entities under clause (19) of Section 2;
- (b) the contests / lotteries / games of chance or skill to be exempted under item (b) of sub-clause (iii) of clause (47) of Section 2;
- (c) the manner of issuing bill / cash memo / receipt under sub-clause (vii) of clause (47) of Section 2;
- (d) the number of other official or non-official members of the Central Council under S.3(2)(b);

- (e) the time, place and procedure for transaction of business of the Central Council under S.4(2);
- (f) the number of Commissioners in the Central Authority under S.10(2);
- (g) the qualifications, recruitment, appointment, tenure, salaries, allowances, removal and other service conditions of the Chief Commissioner and Commissioners of the Central Authority under S.11;
- (h) the salaries, allowances and other terms and conditions of service of the officers and other employees of the Central Authority under S.13(2);
- (i) the qualifications and manner of appointment of the Director-General / Additional Director-General / Director / Joint Director / Deputy Director / Assistant Director of the Investigation Wing under S.15(2);
- (j) the manner of taking copies or extracts of seized documents / records / articles under S.22(3);
- (k) the officer and manner for disposing of articles subject to speedy or natural decay under S.22(4);
- (l) the form and manner for preparing annual statement of accounts of the Central Authority in consultation with the CAG under S.26(1);
- (m) the form and time for the annual report etc. by the Central Authority under S.27(1);
- (n) the qualifications, recruitment, appointment, tenure, resignation and removal of the President and members of the District Commission under S.29;
- (o) the other value of goods and services in respect of which the District Commission shall have jurisdiction under the proviso to S.34(1);
- (p) the manner of electronic filing of complaints under the proviso to S.35(1);
- (q) the fee, electronic form and manner of payment under S.35(2);
- (r) the cases which may not be referred for mediation under S.37(1);
- (s) the manner of authentication of goods sampled in the case of the National Commission under S.38(2)(c);
- (t) any other matter under S.38(9)(f);
- (u) the fund and the manner of utilisation of the amount under S.39(2);

- (v) the form and manner of appeal to the State Commission under S.41;
- (w) the qualifications and other terms and conditions of service of the President and members of the State Commission under S.43;
- (x) the other value of goods and services for the State Commission under the proviso to S.47(1)(a)(i);
- (y) the form, manner and pre-deposit procedure for appeal to the National Commission under S.51(1);
- (z) the number of members of the National Commission under S.54(b);
- (za) the qualifications and other service conditions of the President and members of the National Commission under S.55(1);
- (zb) the salaries and other terms of service of officers and employees of the National Commission under S.57(3);
- (zc) the other value of goods and services for the National Commission under the proviso to S.58(1)(a)(i);
- (zd) the manner of pre-deposit of 50 per cent. under the second proviso to S.67;
- (ze) the form for furnishing information to Central Government under S.70(4);
- (zf) the persons in the consumer mediation cell under S.74(3);
- (zg) the measures by the Central Government to prevent unfair trade practices in e-commerce / direct selling under S.94;
- (zh) the amount for compounding offences under S.96(1);
- (zi) the fund to which penalty and amount collected shall be credited under S.97; and
- (zj) any other matter which is to be, or may be, prescribed, or in respect of which provisions are to be, or may be, made by rules.

Section 102. Power of State Government to make rules

(1) The State Governments may, by notification, make rules for carrying out the provisions of this Act:

Provided that the Central Government may, frame model rules in respect of all or any of the matters with respect to which the State Government may make rules under this section, and where any such model rules have been framed in respect of any such matter, they shall apply to the State until the rules in respect of that matter is made by the State

Government and while making any such rules, so far as is practicable, they shall conform to such model rules.

(2) The matters in respect of which a State Government may make rules include, inter alia, the membership of the State and District Councils, the number, qualifications and service conditions of the President and members of the District Commission and the State Commission, manner of authentication of goods sampled, pre-deposit on appeals, and any other matter for which rules may be prescribed.

Section 103. Power of National Commission to make regulations

(1) The National Commission may, with the previous approval of the Central Government, by notification, make regulations not inconsistent with this Act to provide for all matters for which provision is necessary or expedient for the purpose of giving effect to the provisions of this Act.

(2) Such regulations may, in particular, prescribe costs for adjournments [under S.38(7) and S.52], the maintenance of information by the consumer mediation cell [S.74(4)], the manner of quarterly reports [S.74(5)], the qualifications, training, code of conduct, removal and cancellation of empanelment of mediators [S.75(2)–(3)], facts to be disclosed by mediators [S.77(c)], the time and manner of mediation [S.79(3)], and other matters.

Section 104. Power of Central Authority to make regulations

(1) The Central Authority may, with the previous approval of the Central Government, by notification, make regulations not inconsistent with this Act, for the purpose of giving effect to the provisions of this Act.

(2) Such regulations may, in particular, prescribe the procedure for engaging experts and professionals [S.13(3)], the procedure for transaction and allocation of business of the Chief Commissioner and Commissioners [S.14(1)], the form, manner and time for inquiries / investigations to be submitted by the Director-General [S.15(5)], and such other matter as may be made by regulations.

Section 105. Rules and regulations to be laid before each House of Parliament

(1) Every rule and every regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of **thirty days** which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the

successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

(2) Every rule made by a State Government under this Act shall be laid as soon as may be after it is made, before the State Legislature.

Section 106. Power to remove difficulties

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order in the Official Gazette, make such provisions not inconsistent with the provisions of this Act as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of a period of **two years** from the commencement of this Act.

Section 107. Repeal and savings

(1) The **Consumer Protection Act, 1986 (68 of 1986)** is hereby repealed.

(2) Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under the Act hereby repealed shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act.

(3) The mention of particular matters in sub-section (2) shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897 with regard to the effect of repeal.

REVISION & IMPORTANT KEY POINTS

Final Comparison Table — Consumer Protection Act, 1986 vs Consumer Protection Act, 2019

Feature	CP Act, 1986 (Repealed)	CP Act, 2019 (Current)
Regulator (apex authority)	No central regulator	Central Consumer Protection Authority (CCPA) — S.10
Pecuniary Jurisdiction — District	Up to ₹20 lakh (post-2002 Amendment)	Up to ₹50 lakh (2021 Rules) — S.34
Pecuniary Jurisdiction — State	₹20 lakh to ₹1 crore	Above ₹50 lakh to ₹2 crore (2021 Rules) — S.47
Pecuniary Jurisdiction — National	Above ₹1 crore	Above ₹2 crore (2021 Rules) — S.58
Determination of jurisdiction	Aggregate value of goods/services + compensation claimed	Value paid as consideration only — confirmed by SC in *Rohit Chaudhary v. Vipul Ltd.* (2023) & *Omkar Realtors v. Kushalraj Land Developers* (2024)
Filing of complaint	Only where opposite party resides / carries on business / cause of action arises	Also where complainant resides or personally works for gain — S.34(2)(d)
Mode of complaint	Physical filing only	Includes electronic / online filing — S.35(1) proviso
Product Liability	No express statutory framework	Chapter VI (Sections 82–87) — distinct liability of manufacturer, service provider and seller
Mediation	No statutory framework	Chapter V (Sections 74–81) — Consumer Mediation Cells attached to each Commission
E-commerce & direct selling	Not covered	Expressly covered — S.2(16), S.94 + Rules of 2020 / 2021

Feature	CP Act, 1986 (Repealed)	CP Act, 2019 (Current)
Unfair Contract	Not defined / not justiciable	Defined under S.2(46); declared null/void by State [S.49(2)] & National [S.59(2)] Commissions
False / misleading advertisement	Treated as unfair trade practice only	Standalone penal liability under S.21 (CCPA) and S.89 (criminal)
Penalty on endorser	—	Up to ₹10 lakh / ₹50 lakh for subsequent breach; ban up to 1 / 3 years — S.21
Limitation period	2 years (S.24A of 1986 Act)	2 years from cause of action — S.69
Appeal time-limit (District → State)	30 days	45 days — S.41
Pre-deposit on appeal	50 per cent or ₹25,000 / ₹35,000 / ₹50,000 whichever less	50 per cent of awarded amount at every stage — S.41 / S.51 / S.67
Cognizance of false-ad offences	—	Only on complaint by CCPA / authorised officer — S.92
Compounding of offences	—	Sections 88 / 89 compoundable by CCPA with leave of court — S.96

The 6 Consumer Rights — Mnemonic SICHRE [Section 2(9)]

Code	Right	Section 2(9) wording (paraphrased)
S	Safety	Right to be protected against the marketing of goods, products or services which are hazardous to life and property [S.2(9)(i)]
I	Information	Right to be informed about the quality, quantity, potency, purity, standard and price of goods/products/services so as to protect against unfair trade practices [S.2(9)(ii)]
C	Choice	Right to be assured, wherever possible, access to a variety of goods, products or services at competitive prices [S.2(9)(iii)]

Code	Right	Section 2(9) wording (paraphrased)
H	Hearing	Right to be heard and to be assured that consumer's interests will receive due consideration at appropriate fora [S.2(9)(iv)]
R	Redressal	Right to seek redressal against unfair / restrictive trade practices or unscrupulous exploitation [S.2(9)(v)]
E	Education (Awareness)	Right to consumer awareness [S.2(9)(vi)]

✓ Why this is examined frequently

Several earlier study guides erroneously cited the six rights under Section 5 (Objects of Central Council) of the 2019 Act — that was the structure of the 1986 Act. Under the 2019 Act the rights are statutorily defined in Section 2(9); Section 5 is now a single-sentence object clause directing the Council to render advice on the promotion and protection of these rights. Question setters frequently exploit this difference.

💰 Penalties Cheat Sheet — Quick Recall

Provision	Penalty
S.21(2) — False / misleading ad by manufacturer or endorser (CCPA)	₹10 lakh (1st); ₹50 lakh (subsequent)
S.21(3) — Endorser ban (CCPA)	Up to 1 year (1st); up to 3 years (subsequent)
S.21(4) — Penalty on publisher of misleading ad	Up to ₹10 lakh
S.72(1) — Non-compliance with Commission's order	Imp. 1 month–3 yrs OR fine ₹25,000–₹1 lakh, OR both
S.88 — Non-compliance with CCPA direction (S.20 / S.21)	Imp. up to 6 months OR fine up to ₹20 lakh, OR both
S.89 — False / misleading ad (manufacturer / service provider) — criminal	Imp. up to 2 yrs + fine ₹10 lakh (1st); Imp. up to 5 yrs + fine ₹50 lakh (subsequent)
S.90(1)(a) — Adulterant, no injury	Imp. up to 6 months + fine up to ₹1 lakh

Provision	Penalty
S.90(1)(b) — Adulterant, injury (not grievous)	Imp. up to 1 yr + fine up to ₹3 lakh
S.90(1)(c) — Adulterant, grievous hurt *(cognizable / non-bailable)*	Imp. up to 7 yrs + fine up to ₹5 lakh
S.90(1)(d) — Adulterant, death *(cognizable / non-bailable)*	Imp. min. 7 yrs to life + fine min. ₹10 lakh
S.91(1)(a) — Spurious goods, injury (not grievous)	Imp. up to 1 yr + fine up to ₹3 lakh
S.91(1)(b) — Spurious goods, grievous hurt *(cognizable / non-bailable)*	Imp. up to 7 yrs + fine up to ₹5 lakh
S.91(1)(c) — Spurious goods, death *(cognizable / non-bailable)*	Imp. min. 7 yrs to life + fine min. ₹10 lakh
S.93 — Vexatious search by DG / officer under S.22	Imp. up to 1 yr OR fine up to ₹10,000, OR both

🔑 Hidden Key Points (The 1% Details Examiners Love)

- Three Councils — purely advisory.** The Central / State / District Consumer Protection Councils under Chapter II are expressly designated as ADVISORY bodies (S.3(2), S.6(2), S.8(2)). They have no adjudicatory power. The District Council is chaired by the District Collector (not the District Magistrate, except where the Collector is also the DM ex officio).
- Six Consumer Rights are in S.2(9), NOT S.5.** Section 5 is a one-line object clause for the Central Council. The rights are statutorily housed in the definition section.
- Unfair-Contract jurisdiction lies only with State and National Commissions.** Under S.49(2) and S.59(2), only the State and National Commissions can declare an unfair contract null and void. The District Commission has NO such power — a frequent objective-paper distractor.

4. **Pecuniary jurisdiction is based on "value paid as consideration" — not on compensation claimed.** This is statutory (Sections 34/47/58 as amended by the 2021 Rules) and has been affirmed by the Supreme Court in *Rohit Chaudhary v. Vipul Ltd.*, (2023) and *Omkar Realtors v. Kushalraj Land Developers*, (2024). Earlier pre-2021 NCDRC orders (especially *Pyaridevi Chabiraj Steels* — 2020) followed the same principle.
5. **S.34(2)(d) — "Complainant's residence" jurisdiction is a NEW addition.** The 1986 Act did not allow a consumer to file at the place where he resides or personally works for gain. The 2019 Act introduces this consumer-friendly forum option.
6. **Admissibility deemed within 21 days.** Under S.36(2)–(3), if the District Commission does not decide admissibility within 21 days from the date of filing, the complaint is DEEMED admitted.
7. **Time-limit for disposal — 3 months (no testing) / 5 months (with testing).** S.38(7). Endeavour, not mandatory.
8. **Pre-deposit at every appellate stage — 50 per cent.** Sections 41, 51 and 67. The amount is calculated on the awarded amount, not on the gross relief claimed.
9. **Limitation period — 2 years.** S.69. Condonation requires recorded reasons.
10. **CCPA penalty on endorser — endorser's statutory defence.** S.21(5) — "due diligence to verify the veracity of the claims". The Supreme Court in *Common Cause v. Union of India* (2024) directed self-declaration certificates for endorsers from advertisers — operationalised by MIB advisories of 2024.
11. **Compounding — only Sections 88 and 89 (NOT 90 or 91).** S.96(1). Adulterant and spurious-goods offences are NON-COMPOUNDABLE. The compounding authority is the CCPA (or its specially authorised officer), with leave of the court before which the complaint under S.92 has been filed.
12. **Compounding bar — 3-year cooling-off.** S.96(3) bars compounding for repeat offenders within 3 years. After 3 years, the subsequent offence is deemed a first offence (Explanation).
13. **Cognizance for false-ad offence — only on CCPA complaint.** S.92 — court cannot take cognizance of S.88 / S.89 offence except on complaint of the Central Authority or its authorised officer.
14. **Vexatious search by Director-General — ONE year and ₹10,000.** S.93. Many earlier guides erroneously print this as 6 months and ₹25,000.

15. Mediation order is FINAL. Third proviso to S.41 / second proviso to S.51(1) — no appeal lies from an order passed under S.81 pursuant to a mediation settlement.

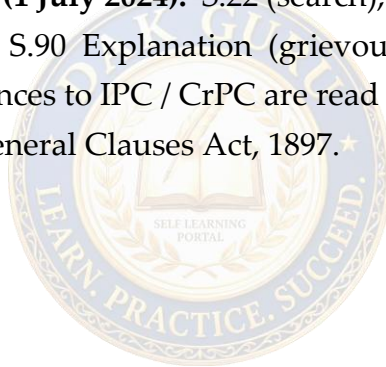
16. Commission = Judicial Magistrate of First Class for S.72 trial. S.72(2) — for offences under the Act, the Commission is deemed to be a JMFC. Summary trial under S.72(3) (now governed by Chapter XXII / Sections 283–288 of the BNSS, 2023).

17. Product Liability — manufacturer liable even without negligence in respect of express warranty. S.84(2) — strict liability for non-conformity to express warranty.

18. E-commerce, direct selling, multi-level marketing — "buys / hires" includes them. Explanation (b) to S.2(7).

19. CCPA Investigation Wing — 6 officer designations. Director-General, Additional Director-General, Director, Joint Director, Deputy Director, Assistant Director — S.15(2). All are deemed public servants under S.95.

20. BNS / BNSS replacement (1 July 2024). S.22 (search), S.38(10) (judicial proceedings), S.72(2) (criminal procedure), S.90 Explanation (grievous hurt), S.95 (public servant), S.96(5) (acquittal) — all references to IPC / CrPC are read as references to BNS / BNSS by virtue of Section 8(1) of the General Clauses Act, 1897.



DARK PATTERNS CHEAT SHEET

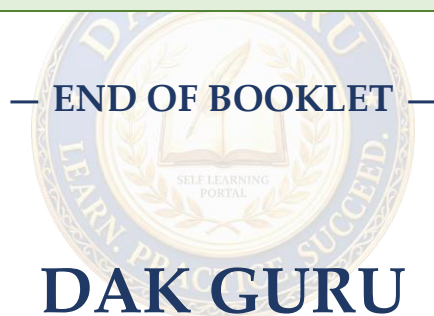
Issued by the Central Consumer Protection Authority (CCPA) on **30 November 2023** as the **Guidelines for Prevention and Regulation of Dark Patterns, 2023** in exercise of powers under Section 18(2)(l) of the CP Act, 2019. Engaging in any of the 13 specified dark patterns is declared to be an "**unfair trade practice**" within the meaning of Section 2(47) and is therefore actionable both before the CCPA (under Sections 18–21) and before the Consumer Disputes Redressal Commissions (under Chapter IV).

#	Dark Pattern	What it is / Illustrative example
1	False Urgency	Creating a fake sense of haste — "Only 2 left!" / "Sale ends in 15 minutes" when neither is true
2	Basket Sneaking	Sneaking additional items / services / donations / charges into the cart without user's explicit consent at checkout
3	Confirm Shaming	Guilt-tripping language to influence a choice — "No thanks, I don't want to save money"
4	Forced Action	Forcing the consumer to take an unintended action — e.g. mandatory sharing of unrelated personal data or installation of additional apps to access a service
5	Subscription Trap	Easy sign-up, complex / hidden cancellation; auto-renewal without notice; pre-ticked subscription boxes
6	Interface Interference	Manipulating UI design to mislead — visual prominence to one option, hidden "reject" buttons, deceptive icons
7	Bait and Switch	Advertising a product / service at a particular price or with particular features, but delivering something different
8	Drip Pricing	Revealing additional charges (fees, taxes, convenience charges, gateway charges) only at the final stage of checkout
9	Disguised Advertisement	Embedding promotional content disguised as editorial, user-generated, news, or organic content
10	Nagging	Repeated interruptions of normal use by intrusive prompts to elicit a particular action (push notifications, pop-ups)

#	Dark Pattern	What it is / Illustrative example
11	Trick Wording	Using confusing / misleading / ambiguous language or double negatives to mislead the consumer ("Uncheck this box if you do NOT wish to opt out")
12	SaaS Billing	Recurring billing on Software-as-a-Service contracts where the consumer is unaware of (or cannot easily exit) the recurring charge
13	Rogue Malware	Tricking users into downloading / clicking on links that lead to malicious software masquerading as legitimate ads or buttons

✓ ENFORCEMENT TRIPLE – How to remember the consequences

Engagement in a Dark Pattern triggers a THREE-FOLD CONSEQUENCE: (i) it is an UNFAIR TRADE PRACTICE under S.2(47); (ii) it attracts CCPA's penal powers under S.21 (₹10 lakh / ₹50 lakh for misleading-ad limbs); and (iii) the affected consumer may file a complaint before the appropriate Consumer Commission under Chapter IV.



— END OF BOOKLET —

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